

Rajkumar v. U.P. Rajya Vidhut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 20 December 2019 · WRIT - C No. - 42579 of 2019 · WRIT - C No. 42579 of 2019 · **Writ disposed; petitioner to object before the Executive Engineer; speaking final order directed; coercive action stayed six weeks; Section 127 liberty if aggrieved; citation revives on default.**

HEADNOTE

A consumer seeking a mandamus against coercive recovery of Rs. 66,584 under a 16.09.2019 recovery citation, alleging want of hearing and non-compliance with the U.P. Electricity Supply Code, 2005, was directed to appear before the Executive Engineer with objections for a speaking final order. Coercive action was stayed for six weeks or until disposal of the objection. Any grievance against that final order was left to an appeal under Section 127 of the Electricity Act, 2003. The writ was disposed of without deciding the Supply Code challenge on merits.

FACTUAL SUMMARY

Rajkumar filed a writ seeking a mandamus restraining U.P. Rajya Vidhut Vitran Nigam Ltd. from coercive recovery of Rs. 66,584 under recovery certificate No. 2689 dated 16 September 2019. He contended that the respondents were taking coercive steps without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. After hearing counsel for the petitioner and for the Electricity Department, the Division Bench disposed of the petition with directions to the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

speaking final order then section 127 appeal

HOLDING

Where a consumer challenges coercive recovery under a recovery citation alleging want of hearing and non-compliance with the U.P. Electricity Supply Code, 2005, the High Court may dispose of the writ by directing the consumer to appear before the Executive Engineer with objections and evidence, requiring a speaking and reasoned final order within a fixed time, staying coercive action for a limited period, and leaving any grievance against that final order to an appeal under Section 127 of the Electricity Act, 2003; default in appearance revives the citation. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order by the Executive Engineer on the consumer's objection to the recovery citation, the Court disposed of the writ and left any further grievance to an appeal under Section 127 of the Electricity Act, 2003. ¶ 1

alternative-remedy-section-127-appeal The Court expressly kept open an appeal before the concerned authority under Section 127 if the petitioner is aggrieved by the Executive Engineer's final order. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal Liberty under Section 127 was granted only against the final order to be passed by the Executive Engineer, not against the recovery citation itself. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY OF RS. 66,584 UNDER CITATION DATED 16.09.2019 VIOLATED THE U.P. ELECTRICITY SUPPLY CODE, 2005 OR WAS ISSUED WITHOUT HEARING

Merits left to the Executive Engineer on objection, with Section 127 appeal thereafter. ¶ 1

